



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB4018: ~~technical correction; public records~~

NOW: sheriff; exclusive authority; auxiliary

MARSHALL FLOOR AMENDMENT

1. Allows the sheriff to request and use the aid of volunteer posse and reserve organizations in executing duties *solely prescribed in statute* relating to the powers and duties of the sheriff.

ADDITIONAL COW
MARSHALL FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 4018
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.
~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:
2 Section 1. Section 11-441, Arizona Revised Statutes, is amended to
3 read:
4 11-441. Powers and duties
5 A. The sheriff shall:
6 1. Preserve the peace.
7 2. Arrest and take before the nearest magistrate for examination
8 all persons who attempt to commit or who have committed a public offense.
9 3. Prevent and suppress all affrays, breaches of the peace, riots
10 and insurrections that may come to the knowledge of the sheriff.
11 4. Attend all courts, except justice and municipal courts, when an
12 element of danger is anticipated and attendance is requested by the
13 presiding judge and obey lawful orders and directions issued by the judge.
14 5. Take charge of and keep the county jail, including a county jail
15 under the jurisdiction of a county jail district, and the prisoners in the
16 county jail.
17 6. Endorse on all process and notices the year, month, day, hour
18 and minute of reception and issue to the person delivering the process or
19 notice, on payment of fees, a certificate showing the names of the
20 parties, the title of the paper and the time of reception.
21 7. Serve process and notices in the manner prescribed by law and
22 certify under the sheriff's hand on the process or notices the manner and
23 time of service, or if the sheriff fails to make service, the reasons for
24 failure, and return them without delay. When returnable to another
25 county, the sheriff may enclose such process or notices in an envelope,
26 addressed to the officer from whom received, and deposit the envelope

1 postage prepaid in the post office. The return of the sheriff is prima
2 facie evidence of the facts stated in the return.

3 8. Secure, as soon as possible, the home of a deceased person
4 located outside the boundaries of an incorporated city or town if the
5 sheriff is unable to determine or locate the heirs or executor of the
6 deceased person.

7 B. The sheriff, in executing the duties prescribed in subsection A,
8 paragraphs 1 through 4 of this section, may command the aid of as many
9 inhabitants of the county as the sheriff deems necessary.

10 C. The sheriff shall conduct or coordinate within the county search
11 or rescue operations involving the life or health of any person or may
12 assist in such operations in another county at the request of that
13 county's sheriff. The sheriff may request assistance from any persons or
14 agencies in fulfilling duties under this subsection. A search and rescue
15 unit established or recognized by a county may possess human remains as
16 defined in section 36-301 for the purpose of training canines used for
17 search and rescue work. The sheriff or the sheriff's designee shall keep
18 an inventory of all human remains that are kept for the purpose of
19 training search and rescue canines. The inventory must be updated when
20 the search and rescue unit receives human remains or disposes of human
21 remains that are no longer useful to the search and rescue unit. Each
22 search and rescue unit that possesses human remains for the purpose of
23 training search and rescue canines shall establish policies and standard
24 operating procedures for access to, the inventory of and the possession
25 and disposal of human remains kept for the purpose of training search and
26 rescue canines.

27 D. The sheriff, in executing the duties prescribed in this section,
28 ~~INCLUDING THE DUTIES PRESCRIBED IN SUBSECTION A OF THIS SECTION [AND ANY~~
29 ~~OTHER DUTY LAWFULLY UNDERTAKEN BY THE SHERIFF PURSUANT TO AND CONSISTENT~~
30 ~~WITH THE CONSTITUTION AND LAWS OF THIS STATE]~~, may request AND USE the aid
31 of volunteer posse and reserve organizations located in the county. WHEN
32 ACTIVATED BY THE SHERIFF, THE SHERIFF HAS EXCLUSIVE AUTHORITY TO REGULATE
33 THE ORGANIZATION AND EQUIPMENT THAT IS USED BY A POSSE OR RESERVE
34 ORGANIZATION OR MEMBERS OF A POSSE OR RESERVE ORGANIZATION THAT ARE ACTING
35 WITHIN THE SHERIFF'S AUTHORITY AND WRITTEN POLICY IN SUPPORT OF THE
36 SHERIFF'S OFFICE, CONSISTENT WITH LAW.

37 E. The sheriff may assist in executing the duties prescribed in
38 this section in another county at the request of that county's sheriff.

39 F. The sheriff may require any prisoner who is on work release to
40 reimburse the county for reasonable expenses incurred in connection with
41 the release.

42 G. The board of supervisors of a county bordering Mexico may adopt
43 an ordinance pursuant to chapter 2 of this title allowing the sheriff to
44 prevent the entry from this state into Mexico at the border by any
45 resident of this state who is under eighteen years of age if the minor is
46 unaccompanied by a parent or guardian or does not have written consent for
47 entry from the minor's parent or guardian. The authority of the sheriff

House Amendments to H.B. 4018

1 is only to prevent entry and not to otherwise detain the minor. This
2 subsection does not limit the authority of the sheriff pursuant to any
3 other law. A county is not civilly or criminally liable for not adopting
4 an ordinance pursuant to this subsection.

5 H. Notwithstanding section 13-3112, the sheriff may authorize
6 members of the sheriff's volunteer posse who have received and passed
7 firearms training that is approved by the Arizona peace officer standards
8 and training board to carry a deadly weapon without a permit while on
9 duty.

10 Enroll and engross to conform

11 Amend title to conform

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